

CHAPTER 63.

An Act to amend sections forty-two, fifty-one, fifty-four, sixty-nine, one hundred and three, one hundred and fifteen, and one hundred and twenty-one of the Local Government (Ireland) Act, 1898, and Articles nineteen, twenty-four, and thirty-six of the Schedule to the Local Government (Application of Enactments) Order, 1898.

[8th August 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. If a petition in pursuance of subsection (1) of section forty-two of the principal Act against an Order of the Local Government Board is withdrawn before the date fixed in that behalf in the Order, the said subsection shall have effect in like manner as if the petition had not been received.

Amendment of 61 & 62 Vict. c. 37. s. 42 (1), as to withdrawal of petition.

2. Notwithstanding anything in section fifty-one of the principal Act, the council of any county or of any urban district may, if they think fit, either immediately prior to or at the beginning of each local financial year, make one poor rate for the whole financial year and collect the same in equal moieties, one moiety for each half year.

Amendment of 61 & 62 Vict. c. 37. s. 51, as to making of poor rate.

3.—(1.) Section fifty-four of the principal Act shall be deemed to have had effect as from the gale day last before the appointed day under that Act in the case of any tenancy one of the gale days of which is in March.

Amendment of 61 & 62 Vict. c. 37. s. 54, as to gale day and as to deductions from rent in urban districts.

(2.) Subsection (4) of the said section fifty-four shall apply with the necessary modifications, and shall be deemed to have so applied as from the gale day last before or next after the appointed day under the principal Act, as the case requires, where a deduction is or has been made from rent by virtue of subsection (11) of the said section, either as amended or not, in like manner as it applies where rent is reduced. Provided that where a person receiving and paying rent in respect of the same holding would not, if the principal Act or this Act had not passed, have been entitled to deduct more than half the poor rate from the rent paid by him, the reduction or deduction which may be made under the said subsection (4), either as extended or not, shall be calculated on the assumption that the occupier was entitled to deduct half the standard amount for poor rate in the standard financial year.

(3.) Where an occupier is entitled under subsection (11) of the said section fifty-four to deduct from his rent a portion of the poor rate, he shall, instead of deducting the portion mentioned in the

said subsection, be and, as from the day last before or next after the appointed day under the principal Act as the case requires, be deemed to have been, entitled to deduct a sum bearing the same proportion to the amount of poor rate actually paid by him from time to time in respect of the holding (exclusive of any amount raised as a separate item thereof under the principal Act) as the total amount he would have been entitled to deduct in the standard financial year, whether on account of poor rate or county cess, or both, on the assumption that the standard amounts for poor rate and county cess were raised in that year, bears to the standard amount for poor rate and county cess added together.

(4.) The expression "lease" in the said subsection (11) shall include a fee farm grant.

(5.) Any sum paid by any person which would not have been payable if this section had been in the principal Act, may be recovered as a debt from the person to whom it was paid.

Amendment of
61 & 62 Vict.
c. 37. s. 69, as
to salaries of
officers.

4. In section sixty-nine of the principal Act, the following provision shall be inserted and shall be deemed to have had effect as from the appointed day under the principal Act:—

"For the purpose of the application of section one hundred and ten of the Grand Juries Act, 1836, to any county of a city constituted by this Act, that county of a city shall be treated in the same manner as the city of Cork is treated for the purposes of the said section."

Amendment of
61 & 62 Vict.
c. 37. s. 103,
as to
expenses.

5. Any expenses of the Appeal Commission and of any officer assigned by the Local Government Board to assist the Commission mentioned in section one hundred and three of the principal Act incurred after the thirty-first day of March last before the passing of this Act, shall be defrayed out of the sums paid to the Local Taxation (Ireland) Account under section fifty-eight of the principal Act.

Power to
grant gratui-
ties under
61 & 62 Vict.
c. 37. s. 115
(19), and to
commute
allowances.

6.—(1.) Where an officer becomes after the passing of this Act entitled to compensation in pursuance of subsection (19) of section one hundred and fifteen of the principal Act, the council by whom the compensation is payable may, if they think fit, on the application of such officer, award him in lieu of an annual allowance, a gratuity according to the scale in Part One of the Seventh Schedule to the principal Act, and the amount of any such gratuity shall in case of dispute be determined by the Treasury.

(2.) Where an annual allowance has before the passing of this Act been awarded to an officer under the said subsection the council may, if they think fit, on the application of the officer, commute the allowance by the payment of a gratuity calculated on the basis contained in the Schedule to this Act.

(3.) The provision of a gratuity by a council under this section shall be a purpose for which such council may borrow in accordance with the enactments relating to borrowing by such council.

7. Where the duties under the Juries (Ireland) Acts 1871 to 1894, are performed by an existing clerk of a union in pursuance of section one hundred and twenty-one of the principal Act, the expenses thereby incurred shall be raised equally over the whole county.

Amendment of 61 & 62 Vict. c. 37. s. 121, as to certain expenses.

8. Notwithstanding anything in Article nineteen of the Schedule to the Local Government (Application of Enactments) Order, 1898, the audit of the accounts of receipts or payments in respect of the poor rate, or money raised by the poor rate, in every urban district shall be yearly.

Amendment of Application of Enactments Order, 1898, Schedule, Article 19.

9. Article twenty-four of the Schedule to the Local Government (Application of Enactments) Order, 1898, shall apply to every town in like manner as it applies to any county borough or other borough, and shall also apply to the powers conferred by section eight of the Municipal Corporations (Ireland) Act, 1843, by section ten of the Baths and Wash-houses (Ireland) Act, 1846, by section five of the Public Libraries (Ireland) Act, 1877, and by sections ninety-eight and ninety-nine of the Housing of the Working Classes Act, 1890.

Amendment of Application of Enactments Order, 1898, Schedule, Article 24.
6 & 7 Vict. c. 93.
9 & 10 Vict. c. 87.
40 & 41 Vict. c. 15.
53 & 54 Vict. c. 70.

10. Notwithstanding anything in Article thirty-six of the Schedule to the Local Government (Application of Enactments) Order, 1898, in no case shall a larger quorum than seven members be required in the case of any rural district council.

Amendment of Application of Enactments Order, 1898, Schedule, Article 36.

11.—(1.) This Act may be cited as the Local Government (Ireland) Act, 1900, and shall be construed as one with the Local Government (Ireland) Act, 1898, which is in this Act referred to as “the principal Act,” and the principal Act and this Act may be cited together as the Local Government (Ireland) Acts, 1898 and 1900.

Short title, construction, and commencement of Act.

(2.) Subject as in this Act mentioned, this Act shall come into operation on the first day of April next after the passing thereof, or on such other day not more than twelve months earlier or later as the Local Government Board may appoint, either generally or with reference to any particular provision of this Act.

SCHEDULE.

BASIS OF COMMUTATION.

Age next Birthday.	Number of Years' Purchase.	Age next Birthday.	Number of Years' Purchase.	Age next Birthday.	Number of Years' Purchase.
21	15·00258	41	13·24313	61	8·95666
22	14·96111	42	13·08568	62	8·70132
23	14·92519	43	12·92050	63	8·43435
24	14·88969	44	12·74483	64	8·16571
25	14·85191	45	12·55834	65	7·89583
26	14·80890	46	12·36096	66	7·62437
27	14·74746	47	12·14690	67	7·37082
28	14·67951	48	11·92339	68	7·11881
29	14·60551	49	11·69128	69	6·86850
30	14·52581	50	11·45362	70	6·62170
31	14·44054	51	11·21356	71	6·38068
32	14·35005	52	10·98145	72	6·14448
33	14·25257	53	10·75133	73	5·90561
34	14·14731	54	10·52560	74	5·65540
35	14·03442	55	10·30351	75	5·39538
36	13·91478	56	10·08363	76	5·12566
37	13·79016	57	9·86670	77	4·81532
38	13·66060	58	9·64896	78	4·50565
39	13·52738	59	9·42649	79	4·20762
40	13·38854	60	9·19800	80	3·91477